DATE:Â {{ start_date_formatted }}â‹ Â â‹ Â â‹

TENANCY â‹ AGREEMENT

BETWEEN

{{ owner_name }}â‹

{{ owner_ic }}â‹

(LANDLOAD)

&

{{ tenant_name }}â‹

{{ tenant_ic }}â‹

(TENANT)

{{ property_name }}â‹ ,Â {{ property_address }}

â‹

TENANCY AGREEMENT

Parties:

1. The party described in **Section 1 (a) of the Schedule** hereto ("**Landlord**")
2. The party described in **Section 1 (b) of the Schedule** hereto ("**Tenant**")

Recitals:

A. The Landlord is the beneficial owner of all that piece of property more particularly described in **Section 2 of the Schedule** hereto ("**Demised Premises**").

B. The Landlord has agreed to let and the Tenant has agreed to take the Demised Premises upon the terms and conditions hereinafter appearing.

Operative Provisions:Â

1. **AGREEMENT TO LET**

The Landlord agrees to let and the Tenant agrees to take the Demised Premises for the term or period specified in Section 3 of the Schedule hereto commencing on the date stated in Section 4(a) of the Schedule hereto ("Commencement Date") and expiring on the date as stated in Section 4(b) of the Schedule hereto.

2. **RENTAL**

The Tenant shall pay to the Landlord the agreed rental for the Demised Premises stated in **Section 5 of the Schedule** hereto ("**Rent**"), the first Rent payable in advance on the date of execution of this tenancy and thereafter on the first day of each and every succeeding calendar month subsequent to the Commencement Date subject to the terms and conditions hereinafter appearing.

3. **DEPOSIT**

a. The Deposit and Utility Deposit (collectively "Deposits") shall be maintained at the amountsspecified in Section 6 of the Schedule hereto during this tenancy and shall not, without the priorwritten consent of the Landlord, be deemed to be or treated as payment of rent or otherpayments. The Deposits shall be refundable to the Tenant without obligation to invest and freeof interest upon the lawful determination of this tenancy, less such sum or sums as may be dueto the Landlord including but not limited to costs of repairs, replacements, damages to the Demised Premises, or unpaid utilities and charges

b. For the avoidance of doubt, in the event the Tenant terminates or vacates the Demised Premisesbefore the expiry of the tenancy term without the Landlord's prior written consent, the Depositsshall be forfeited absolutely to the Landlord without prejudice to any other rights or remedies ofthe Landlord under this Agreement

4. **TENANT'S COVENANTS**

The Tenant hereby covenants with the Landlord as follows: -

(a) **Payment of Rent**

That the Tenant shall pay the Rent and Deposits at the times and in the manner aforesaid

(b) **Payment for Utilities**

That the Tenant shall at all times bear and pay and discharge all charges payable for the supply of water and electricity bill to the Demised Premises and for all other charges which are properly chargeable upon the Demised Premises.

(c) **Restrictions Against Alteration or Renovations**

That the Tenant shall not make any structural or material alterations in or additions to the Demised Premises without the prior consent of the Landlord in writing and all alterations oradditions made to the Demised Premises or any part thereof shall be borne and paid by theTenant. In the event that any structural or material alterations in or additions to the DemisedPremises are carried out, the Tenant shall restore the Demised Premises, to its original state nature or condition upon the termination of this tenancy herein.

(d) **To Permit Landlord to Enter and View Condition**

That the Tenant shall permit the Landlord or the Landlord's agents with or without workmen and others at all reasonable times to enter and view the condition of the Demised Premises and toexecute any repairs and works as the Landlord may think fit and the Tenant shall forth with repairand mend in a proper and workmanlike manner any defect for which the Tenant is liable and ofwhich written notice shall be given to the Tenant or left at the Demised Premises

(e) **To Permit Laying of Wires, Pipes, etc**

That the Tenant shall permit the Landlord or the Landlord's agents or workmen to lay and fix in and lead through the Demised Premises all such wires, cables and ducts for electricity and air-conditioning installation and pipes for water gas waste and sewage as the Landlord may from timeto time required to be laid and fixed in and lead through the Demised Premises for generalpurposes and also to permit the Landlord or the Landlord's agents or workmen at all reasonablehours to enter the Demised Premises for the general purposes aforesaid and also for the purposesof repairing, removing and replacing all or any of the said wires, cables ducts and pipes.

(f) **To Use For Specific Purpose**

That the Tenant shall not use the Demised Premises for any purpose other than the use specifiedin **Section 7 of the Schedule** hereto without the written consent of the Landlord which consentshall not be unreasonably withheld.

(g) **To keep Demised Premises in Tenantable Condition**

That the Tenant shall at all times keep and maintain the interior of the Demised Premises includingall glass in the windows and all shutters locks and fastenings in good and tenantable repair andclean condition (fair wear and tear only excepted) and shall replace such fixtures or fittings whichshall be broken or damaged due to malicious negligent or careless acts or omissions of the Tenantor his servants or agents

(h) **Compliance with Laws, etc.**

That the Tenant or occupier of the Demised Premises shall at all times observe and comply withall conditions and covenants binding upon the Demised Premises or upon the Landlord otherwisehowsoever in respect of the Demised Premises and shall not do or omit or suffer to be done oromitted any act matter or thing in on or respecting the Demised Premises which contravenes anyprovision of any Act Ordinance Enactment Order Rule Regulation or Bye-Law now or hereafteraffecting the same and shall at all times hereafter indemnify and keep indemnified the Landlordagainst all actions proceeding costs expenses claims and demands whatsoever in respect of anysuch act matter or thing done or omitted to be done in contravention of any of the said provisions.

(i) **To indemnify against injuries and damage**

That the Tenant shall at all times indemnify and keep indemnified the Landlord against all actionsproceedings claims costs charges expenses and demands in respect of any injury to the person ordamage to the property of the family guest's servants' visitors' invitees or licenses of the Tenant while in or upon the Demised Premises.

(j) **Acts Affecting Insured Risks**

That the Tenant shall not do or omit to be done any act or thing which may render void or voidablethe insurance on the Demised Premises or the building in which 'the Demised Premises form partof or whereby the premium of any such insurance may be liable to be increased and shall makegood all damages suffered by the Landlord and shall on demand pay to the Landlord all expensesincurred by the Landlord in or about the renewal of such policy or policies rendered necessary bya breach or non-observance of this covenant without prejudice to the other rights of the Landlord against the Tenant.

(k) **Covenant to Maintain Demised Premises**

That the Tenant shall keep clean the Demised Premises and the surrounding thereof.

(l) **Prohibition against Storage of Goods, Explosives, etc.**

That the Tenant shall not bring or store or permit or suffer to be brought or stored on the DemisedPremises or any part thereof arms, ammunitions or unlawful goods, gun-powder, saltpeter,kerosene or any combustible substance or any goods which in the opinion of the Landlord are ofnoxious or dangerous or hazardous nature.

m) **Security of Demised Premises**

That the Tenant shall be entirely responsible for the security of the Demised Premises and all goods and belongings kept therein.

(n) **Restriction against under letting and Assignment**

That the Tenant shall not assign, underlet nor part with the actual or legal possession or the useof the Demised Premises or any part thereof for any term whatsoever without the previousconsent in writing of the Landlord being first had and obtained PROVIDED ALWAYS that in theevent of the Tenant assigning under letting or parting with the actual or legal. possession or useof the Demised Premises or any part thereof in contravention of the provisions of this clause thenthe Landlord may without prejudice to its rights under this tenancy collect from any assigneeunder lessee or other person in possession of the Demised Premises or any part thereof all rentand other moneys payable in respect of the Demised Premises or any part thereof by suchperson(s) or corporation(s) to the Tenant AND PROVIDED FURTHER that such collection of rentand other moneys as aforesaid shall not be deemed to be an acceptance by the Landlord of anysuch person(s) or corporation(s) as assignee under lessee tenants or occupiers of the DemisedPremises or any part thereof

(o) **Adverse effect on Landlord**

That the Tenant shall not use the Demised Premises or any part thereof for any reason whatsoevercalculated to affect adversely the interest of the Landlord and shall observe such restrictions or use of the Demised Premises which the Landlord deem fit to impose.

(p) **Prohibition against Undesirable Use**

That the Tenant shall not use the Demised Premises for any illegal unlawful or immoral purposenor to do or permit to be done any act or thing which may become a nuisance or give reasonablecause for complaint from any of the occupiers of buildings adjoining the Demised Premises.

(q) **Covenant to restore Demised Premises**

That the Tenant shall at his own costs and expenses restore the said Demised Premises to itsoriginal position if any structural alterations or additions have been made, if so desired by theLandlord, at the expiry or sooner determination of the period of the tenancy and such restorationshall be carried out within one (1) week from the expiration or sooner determination of the periodof this tenancy, failing which the Landlord shall be at liberty to carry out such restoration and thecosts and expenses thereof shall be borne by the Tenant and payable by the Tenant to theLandlord upon demand. In the event that such restoration shall not be completed upon the expiryof this tenancy, the Tenant shall pay to the Landlord rent for such extra days taken at double themonthly rental reserved herein

(r) **Covenant to pay Costs**

That in the event of the Tenant being in breach of the Tenant's covenants and agreements hereinthis agreement contained, all losses, damages, fines, penalties, costs and expenses whatsoeverarising from or in anywise related to such said breach, including but not limited to the party-to-party and the Landlord's client-and-solicitor legal costs in enforcing the Landlord's rights and evicting the Tenant, shall be borne and paid by the Tenant absolutely

(s) **Permission to view Demised Premises**

That any time during the three (3) calendar months immediately preceding the determination ofthis tenancy, the Tenant shall permit intending tenants and others with written authority fromthe Landlord or its agents at all reasonable times of the day to enter and view the DemisedPremises

(t) **On Determination of Tenancy**

That on the determination of this tenancy the Tenant yield up the Demises Premises and all fixtures, fastening matters and things thereto anywise belonging or appertaining in such good andsubstantial repair or shall be in accordance with the covenants of the Tenant hereinbefore contained and with all locks and keys complete.

5. LANDLORD'S COVENANTS

The Landlord hereby covenants with the Tenant as follows:

(a) **Covenant for Quiet Enjoyment**

That the Tenant paying the Rent and observing and performing the agreements and stipulationson his part herein contained shall be permitted to quietly enjoy the Demised Premises during thistenancy without any interruption from the Landlord or any person claiming under or in trust ofthe Landlord.

(b) **Covenant to Pay Rates and Assessments**

That during this tenancy the Landlord shall subject 19 Clause 4 (b) hereof bear pay and discharge all quit rent assessment or other rates imposed on and payable in respect of the Demised Premises.

(c) **Covenant to Maintain Main Structure, etc**

That the Landlord shall keep the roof and main structure including walls, floors and main drainsand pipes in good and tenantable repair and condition including the repairing and redecoratingof any part thereof at such times and in such manner as the Landlord in the Landlord's absolute discretion shall consider to be necessary.

6. **MUTUAL COVENANTS**

Provided always and it is hereby agreed between the parties hereto as follows;

(a) **Default**

If the Rent or any part thereof or any payments payable to the Landlord as specified in thisagreement shall be unpaid for seven (7) days after becoming payable (whether the same shallhave been formally demanded or not) or if any of the agreements or covenants herein expressedand on the part of the Tenant to be performed or observed or if the Tenant shall become bankruptor wound up, whether compulsorily or voluntary (save for the purpose of amalgamation orcomposition) or enter into any arrangement or composition with the Tenant's creditors or sufferany distress or execution to be levied on the Tenant's goods then and in any of the said cases itshall be lawful for the Landlord at any time thereafter to re-enter upon the Demised Premises orany part thereof in the name of the whole and thereupon this tenancy shall absolutely determinebut without prejudice to the right of action of the Landlord in respect of any breach of the Tenant'sagreements and covenants.

(b) **Damage by Fire, etc.**

In case the Demised Premises or any part thereof shall at any time during this tenancy bedestroyed or damaged by fire, lightning, riot or civil commotion, tempest or other unforeseencause so as to become unfit for occupation and use, then the Landlord shall not be bound orcompelled to rebuild or reinstate the same unless the Landlord in its discretion thinks fit; and inthe event of the Landlord deciding to rebuild and reinstate the Demised Premises then providedthe moneys payable under any policy of insurance effected by the Landlord shall not have becomeirrecoverable through any act or default of the Tenant or any other tenant or occupiers of theDemised Premises) the Rents and other payments hereby reserved or a fair and just proportionof the same according to the nature and extent of damage sustained shall be suspended andceased to be payable and the Tenant shall peacefully surrender, vacate, leave and yield up to theLandlord possession of so much of the Demised Premises as shall have been destroyed until theDemised Premises shall have been again rendered fit for occupation and use; in the event of theLandlord not deciding to rebuild and reinstate the Demised Premises then the rent herebyreserved shall cease and the term hereby created shall determine from the happening of suchdestruction or damage as aforesaid and the Tenant shall peacefully surrender vacate leave andyield up to the Landlord possession of so much of the Demised Premises as shall not have beendestroyed

(c) **No Reimbursement for Improvement**

The Landlord shall not be liable to repay to the Tenant the cost and expenses incurred by theTenant on any improvements made by the Tenant on the said Demised Premises and the Tenantshall not be entitled to claim for any reduction in the rent on account of such cost and expenses
incurred by the Tenant

7. ADDITIONAL EXPRESS CONDITIONS

The parties hereto expressly covenant and agree that in addition to the terms and conditionsherein provided, this tenancy shall be further subject to the special express conditions set out inSection 8 of the Schedule, if any, and in the event of any conflict discrepancy or variance thespecial express conditions set out in Section 8 of the Schedule shall prevail

8. TIME OF ESSENCE

Time whenever mentioned in this agreement shall be of the essence of this agreement.

9. **FEES**

(a) All costs of and incidental to the preparation and completion of this agreement including stampduty shall be borne and paid by the Tenant.

(b) If this Agreement shall be required to be enforced through any process of law, or if any monies payable hereunder shall be placed in the hands of solicitors for collection, the party in defaultshall pay the other party's solicitors' fees on a solicitor and client basis) and any other fees andexpenses incurred in respect of such legal proceedings

10. **NOTICE**

(a) Any notice, request or demand required to be served by either party hereto on the other underany of the provisions hereof shall be in writing and shall be deemed to be sufficiently served ormade as follow:

(i) Â If sent by tale fax, when it ought in the ordinary course to have been received by the party to whom it is intended; and

(ii) If sent by post, four (4) days after it is posted

(iii) If delivered by hand to the party to be served or his Solicitors when receipt of the same isacknowledged by the party to be served or his Solicitors on the duplicate of the same

(b) Any notice, request, consent, demand or other communication to be given to either party shall, if the same is to be posted, be addressed to the party to be served at such party's addressmentioned in **Section 1 of the Schedule** hereto or such party's solicitors unless any party hereofshall have previously notified the others in writing of any other postal address to which notices,requests, consents, demand or other communication are to be sent in which case the same shallbe sent to that address. If the same be sent by fax, it shall be sent to the fax number of the partyto whom it is intended as stated in **Section 1 of the Schedule**.

11. **SEVERABILITY**

If any term or provision of this Agreement shall in whole or in part be held to any extend to beillegal or enforceable under any enactment or rule of law, that term or provision or part shall tothat extent be deemed not to form part of this Agreement and the enforceability of the remainderof this Agreement shall not be affected

12. **WAIVER OF INDULGENCE**

Knowledge or acquiescence by the Landlord of any breach of any of the conditions or covenantsherein contained or any indulgence given by the Landlord shall not operate as or deemed to be awaiver of such condition or covenant or any of them and notwithstanding such knowledge oracquiescence or indulgence given, the Landlord shall be entitled to exercise its rights under thisAgreement and to require strict performance by the Tenant of the terms and conditions herein

13. **SCHEDULE**

The Schedule hereto shall be taken read and construed as an essential part of this Agreement

14. **INTERPRETATION**

In this agreement unless there is something in the subject or context inconsistent with such construction or unless it is otherwise expressly provided:-

(i) words importing the masculine gender shall be deemed to include the feminine and neuterÂ gender;

(ii) words importing the singular number shall include the plural and vice versa

(iii) words applicable to natural persons only shall include anybody or persons firm or partnershipÂ corporate or unincorporated;

(iv) where there are two or more persons or parties included or comprised in the expression "theLandlord" or "the Tenant" agreements covenants terms and undertakings expressed to be madeby or binding upon such persons or parties shall be deemed to be made by or binding upon suchpersons or parties shall be deemed to be made by or binding upon such persons or parties jointly
and severally;

(v) the headings are inserted for convenience of reference only and shall not affect the construction of this Agreement

15. **SUCCESSORS BOUND**

This agreement shall be binding upon the successors-in-title and permitted assigns of the Landlord and the Tenant.

IN WITNESS WHEREOF the parties hereto have hereunto set their hands the day and year first above written

SIGNED by

The Landlord

In the presence of: _____

SIGNED by

The Tenant

In the presence of: _____

SCHEDULE

(which is to be read and construed as an essential part of this agreement)

Section No.	**Particulars**	
1(a)	The Landlord	**{{ OWNER_NAME }} Â‹** **{{ OWNER_IC }} Â‹**
1(b)	The Tenant	**{{ TENANT_NAME }} Â‹** **{{ TENANT_IC }} Â‹**
2	Demised Premises	**{{ PROPERTY_ADDRESS }} Â‹**
3	Term/Period of Tenancy	**{{ START_DATE }} Â‹ TOÂ {{ END_DATE }} Â‹**
4(a)	Date of Commencement	**{{ start_date }} â‹**
4(b)	Date of Determination	**{{ end_date }} â‹**
5	Rental per Month Ringgit Malaysia	**{{ rent_price }} â‹**
6	Security Deposit	**{{ security_deposit }} â‹**
7	Usage of Demised Premises	**RESIDENCE**
8	Service Package	**{{ LEASALABLE_TYPE }}**
9	Description	**{{ SERVICE_PACKAGE_DESCRIPTION }}**

RULES & REGULATION

1. **BEHAVIOUR AND DISCIPLINE (STRICTLY NOT ALLOWED**

1.1 **SMOKING**

- No smoking in the rooms and in the hallway corridors

PETS

- Strictly no pets OF ANY KIND are allowed in your room.

CLEANLINESS

- Ensure clean, neat and tidy at all the times.
- Throw your own rubbish in the rubbish can provided on the ground floor.
- Penalty will be charged if cleanliness rules are disobeyed.
- Do not litter the hallway corridors.

RENTAL

Rental payments are to be **done by the 1st and before 10th of every month.**
Failure to do so will cause **a penalty of RM 3.00 per day** to be charged.
It is advisable to do payments online. **For walk in cash payments a RM 3.00 service fee will be charged**

UTILITIES: ELECTRICITY AND WATER BILL

- Please ensure you pay your utilities bills before 15th of every month to avoid occurrences of outstanding amount as well as interruption of the service.
- Any technical fault in regards of utilities kindly inform us when you received your 1st bill.
- If the usage is above RM 150.00, WARNING NOTICE. Payment should be made within 7 days of notice date.
- Any fee related to reconnection fee will be charged on the tenant.
- Service charge of RM 30 will be charged if tenant request Antz Management Sdn Bhd helpÂ pay behalf of them.
- If the tenant has **high or recurring outstanding utilities**, the tenant will be required to **topup additional utilities deposit up to RM300** upon the next tenancy renewal/agreement
- For tenants with a history of high outstanding utilities, **short-term contract terms may be applied** at the discretion of Antz Management Sdn Bhd

COOKING

- No cooking is allowed in the room.
- However, you are allowed to bring electric kettle / jugs to boil water for your hot drinks, instant noodles etc.

LOUDNESS

- Please slow down the volume after 10pm

VANDALISM

- If you have left your keys in the room, kindly be advised DO NOT take matter into your hands and damage the room doors. **Any request for spare keys will be charges at RM10 each time.** Tenant need to look for locksmith if we do not have your unitâ™s spare key.

DEFECTS & DAMAGES

- We will provide 1 month warranty for all the furniture except because of tear and wear (Excluding human error).
- Please submit the checklist and feedback form withinÂ 1stÂ week upon the check in. No submission means the room is at goof condition.
- After 1 Month, any repair will be bear by the tenant unless its major defect (Internal Wiring /Main Structure excluding human error).
- Below table represent some of the cost that normally incurred

Item	Description
LIGHT BULB	RM200.00 - RM600.00 (Based on condition)
BAD FRAME, WARDROBE	RM120.00 - RM300.00 (Repair based on condition)
SHOWERHEAD LEAKING	RM60.00 - RM100.00 (Repair based on condition)

BREAKING THE LAW

- Strictly **NO ILLEGAL SUBSTANCES** are allowed in the rooms.
- Strictly **NO ILLEGAL ACTIVITIES** such as **GAMBLING, SELLING DRUGS,** PROSTITUITION, **MONEY LAUNDERING, SCAMS** are allowed. We will not hesitate to inform the police if we find any unusual behavior or activity going on in the rooms.
- We have the RIGHT to immediately evict the tenant if found disobeying any law mentioned.

RENEWAL OF TENANCY AGREEMENT

- Any agreement renewal request should be done 4 weeks before your agreement ends.Â
- Staying without agreement is not acceptable, we will take back the demised premises if tenant failed to comply.
- If Management didnâ™t receive any renewal notice within the given 4 weeks, Management has the right to rent out the unit to other tenants.
- If renewal done after the given 4 weeks, it will be considered as new agreement and amount of RM 80 need to be paid.Â
- Additionally, we have the right to consider the renewal of contract based on the rental and utilities payment records.Â
- If there is no response, management have the rights to enter the property unit at any time.

CHECK OUT

- Checkout need to be done appropriately. The tenant should hand over the key to the Management and checking out process need to be done together with the tenant to avoid any miscommunication if any charges are made during the refund process.
- It is advisable to have made full payment of rental and there is no outstanding amount.Â
- Kindly make sure all the utility bills are paid instead of deducting from Deposit.
- We will charge **RM80.00 or ABOVE (e.g., RM120.00) as cleaning fee** (depends on room condition) if the **room is found dirty and untidy** (e.g., didnâ™t throw rubbish, fridge is unclean, toilet has not washed, balcony is dirty, and etc.) when checked out.

- **The room key need to be returned when checked out**. If the key is not returned, by the agreement end date, charges rate is:
    - Â Â **RM12.00 per day (for the first 5 days)**
    - Â Â **RM80.00 per day (the 6th day onward)**
- If we still do not receive the key on 14th days after the agreement expired, we will change a new door lock on tenantâ™s expense and clean up the room. We will not responsible for the missing items upon the room cleaning.
- We will lodge a police report if we **DO NOT RECEIVE THE KEYS.**

DEPOSIT

- Deposit will be forfeited if the agreement period did not fulfill.Â

MISCELLANEOUS

Antz Management Sdn Bhd reserves the right to amend the rules and regulation at any given time. We seek your cooperation to ensure that your stay here would be smooth and also, we would like to thank you in advance for adhering to our rules.Â

TenantÂ	WITNESS BY: (ANTZ STAFF/AGENT)
_____	_____
Name:	Name:Â
Date:Â	Date:Â

010-289 8012

antzmgnt@gmail.com

http://www.facebook.com/antzmanagement/

47G PUSAT PERDAGANGAN, JALAN KAMPAR BARAT 1, TAMAN KAMPAR BARAT, 31900 KAMPAR